

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF MAKAROV AND OTHERS v. RUSSIA

(Application no. 56439/07)

JUDGMENT

STRASBOURG

1 December 2022

This judgment is final but it may be subject to editorial revision.

COUNCIL OF EUROPE
CONSEIL DE L'EUROPE

In the case of Makarov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli, *President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 10 November 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in an application against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on 16 November 2007.

2. The Russian Government ("the Government") were given notice of the application.

THE FACTS

3. The list of applicants and the relevant details of the application are set out in the appended table.

4. The applicants complained of the various restrictions imposed by the authorities on the location, time or manner of conduct of public events. They also raised other complaints under the provisions of the Convention.

THE LAW

I. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

5. The applicants complained principally of the restrictions imposed by the authorities on the location, time or manner of conduct of public events. They relied on Article 11 of the Convention, which reads as follows:

Article 11

"1. Everyone has the right to freedom of peaceful assembly ...

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others ..."

6. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references).

7. In the leading case of *Lashmankin and Others v. Russia,* no. 57818/09 and 14 others, 7 February 2017, the Court already found a violation in respect of issues similar to those in the present case.

8. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were either based on legal provisions which did not meet the Convention's "quality of law" requirements or were not "necessary in a democratic society".

9. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

II. REMAINING COMPLAINTS

10. The applicants also raised other complaints under various Articles of the Convention.

11. The Court has examined the application and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto.

12. It follows that this part of the application must be rejected in accordance with Article 35 § 4 of the Convention.

III. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Having regard to the nature of the applicants' complaints, the Court considers that the finding of a violation, triggering the respondent State's obligation to take measures aimed at improving the general framework governing the organisation and holding of public assemblies (see *Lashmankin and Others*, cited above, §§ 402-78), should be regarded as constituting the most appropriate means of redress (see *Alekseyev and Others v. Russia* [Committee], nos. 26624/15 and 76 others, § 18, 16 January 2020).

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Declares* the complaints concerning the restrictions imposed by the authorities on the location, time or manner of conduct of public events admissible and the remainder of the application inadmissible;

2. *Holds* that these complaints disclose a breach of Article 11 of the Convention concerning the restrictions imposed by the authorities on the location, time or manner of conduct of public events;

3. *Holds* that the finding of a violation of Article 11 of the Convention constitutes in itself sufficient just satisfaction for the non-pecuniary damage sustained by the applicants.

Done in English, and notified in writing on 1 December 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

Application raising complaints under Article 11 of the Convention
(Restrictions on location, time or manner of conduct of public events)

Application no. Date of introduction	Applicant's name Year of birth	Location Date of the public event planned	Restrictions applied	Other measures applied	Final domestic decision (type of procedure) Date Name of the court
56439/07 16/11/2007 (3 applicants)	**Dmitriy Alekseyevich MAKAROV** 1982 **Aleksey Yuryevich KOZLOV** 1975 **Viktoriya Konstantinovna GROMOVA** 1983	Moscow 27/05/2016	proposal to change the manner of conduct	arrest	notification procedure, 17/05/2007, Moscow City Court,